

SUMMONS

Date of Filing:

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Plaintiff designates

QUEENS County as
the place of Trial.

ANDREW SMALLS,

Plaintiff(s),

The basis of venue
is CPLR §504(3)

-against-

SUMMONS

THE CITY OF NEW YORK, New York Police
Department Detective NICHOLAS DORAN,
Tax Registration #:956609, of the
Queens Robbery Squad, Police Officer
MICHAEL KRANZ, Tax Registration #:963101,
Police Officer DAVID BLACK, Tax
Registration #:955757 and JOHN DOES -
Police Officers as yet unidentified,Plaintiff's Residence:
76-00 Shore Front
Parkway, Rockaway
Park, NY 11693
County of Queens

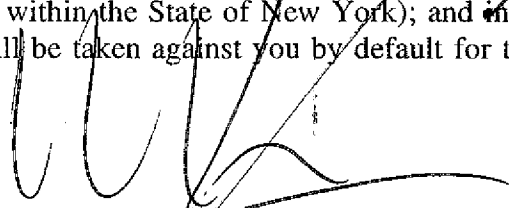
Defendant(s).

X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: October 8, 2023


MICHAEL L. CSERHALMI
MICHAEL L. CSERHALMI, P.C.
Attorney for Plaintiff(s)
38 Maple Drive
Great Neck, NY 11021
(516) 482-6633 [OFFICE]
(516) 610-6633 [CELL]

MLC6633@VERIZON.NET

Defendant's Address(es):

THE CITY OF NEW YORK
c/o SYLVIA O. HINDS-RADIX, ESQ.
Corporation Counsel
Attorney for City of New York
100 Church Street
New York, NY 10007

NICHOLAS DORAN,
Tax Registration #:956609
c/o NEW YORK POLICE DEPARTMENT
1 POLICE PLAZA
NEW YORK, NY

MICHAEL KRANZ,
Tax Registration #:963101
c/o NEW YORK POLICE DEPARTMENT
1 POLICE PLAZA
NEW YORK, NY

DAVID BLACK, Tax
Registration #:955757
c/o NEW YORK POLICE DEPARTMENT
1 POLICE PLAZA
NEW YORK, NY

JOHN DOES - Police Officers
as yet unidentified
c/o NEW YORK POLICE DEPARTMENT
1 POLICE PLAZA
NEW YORK, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANDREW SMALLS,

X

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, New York Police
Department Detective NICHOLAS DORAN,
Tax Registration #:956609, of the
Queens Robbery Squad, Police Officer
MICHAEL KRANZ, Tax Registration #:963101,
Police Officer DAVID BLACK, Tax
Registration #:955757 and JOHN DOES -
Police Officers as yet unidentified,

Index No:

Defendant(s).

X

Plaintiff, complaining of the Defendant(s), by his
attorneys, MICHAEL L. CSERHALMI, P.C., respectfully show to
this Court and allege as follows:

THE PARTIES

1. Upon information and belief, the plaintiff was and
still is a resident of the County of Queens, State of New York.

2. That at all times hereinafter mentioned, the
defendant, THE CITY OF NEW YORK, was and still is a municipal
corporation duly organized and existing under the laws of the
State of New York.

3. Upon information and belief, that at all times
hereinafter mentioned, THE CITY OF NEW YORK employed the police
officer(s) and others hereinafter mentioned in this complaint.

4. Upon information and belief, that at all times
hereinafter mentioned, and on or prior to September 3, 2022,
defendant New York Police Department detective NICHOLAS DORAN,

Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 were employed by the defendant, THE CITY OF NEW YORK, as police officers.

THE NOTICE OF CLAIM

5. Prior hereto and on or about March 11, 2023, the plaintiff caused a written verified notice of claim (Claim #: 2023PI008983) to be filed with and served upon the proper officers, agents and/or employees of the defendant THE CITY OF NEW YORK, pursuant to the statute in each case made and provided.

6. More than thirty (30) days have elapsed since the service of such notice of claim and adjustment or payment thereof has been neglected or refused.

BACKGROUND

7. Upon information and belief, the NYPD received a report from JHONNY PEREZ and JOSHUA PAGAN that they were robbed at gunpoint by three male Blacks wearing dark clothing.

8. Upon information and belief, the NYPD then reviewed surveillance video that did not depict a robbery but merely depicted three male Blacks wearing dark clothing, one of whom was allegedly the plaintiff.

9. Upon information and belief, five weeks after the robbery plaintiff was arrested for the robbery.

10. Upon information and belief, neither PEREZ nor PAGAN ever identified plaintiff as one of the three robbers.

11. Upon information and belief, five months after the

arrest, the District Attorney moved to dismiss and seal the case and the motion was granted by the court.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST

12. Upon information and belief, on or about **Saturday, September 3, 2022 at approximately 5:55 PM at or near Beach 84 Street and Rockaway Beach Boulevard, Far Rockaway, NY 11693,** plaintiff was arrested without probable cause by New York Police Department [NYPD] police officer Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 and/or by other New York Police Department Officers whose names, shield numbers, and tax registration numbers are not known to plaintiff, for allegedly committing the following offense(s) on July 29, 2022 in front of 260 Beach 81 Street, Queens, NY at approximately 4:30PM to 4:35 PM with respect to JHONNY PEREZ and JOSHUA PAGAN:

Penal Law §160.15(4), Robbery in the First Degree, a class B felony [2 counts];

Penal Law §160.10(1), Robbery in the Second Degree, a class C felony [2 counts];

Penal Law §160.10(2)(b), Robbery in the Second Degree, a class C felony [2 counts];

Penal Law §160.05, Robbery in the Third Degree, a class D felony [2 counts];

Penal Law §155.35(1), Grand Larceny in the Third Degree, a class D felony;

Penal Law §155.30(8), Grand Larceny in the Fourth Degree, a class E felony;

Penal Law §120.05(3), Assault in the Second Degree, a class D felony;

Penal Law §120.14(1), Menacing in the Second Degree, a class A misdemeanor [2 counts];

Penal Law §205.30, Resisting Arrest, a class A misdemeanor.

13. Upon information and belief, plaintiff was arrested notwithstanding the fact that:

a. The NYPD knew prior to the arrest that there was no video of plaintiff committing a crime;

b. The NYPD knew prior to the arrest that there was never an identification made by the alleged victims that plaintiff was one of the robbers;

c. The NYPD knew or should have known that there could be no Resisting Arrest when plaintiff was in the precinct holding cell and was asked to remove his shoelaces since he was already under arrest at 5:55 PM; and,

d. The NYPD knew or should have known that there could be no assault by plaintiff upon a police officer when claimant was in the precinct holding cell and was attacked and injured by the police while in the holding cell requiring plaintiff to be treated at a local hospital.

14. Upon information and belief, plaintiff was handcuffed and placed into an NYPD vehicle; transported by said vehicle to a holding cell at a local Queens precinct station house; and, remained in the holding cell at the local Queens precinct

station house for a period of time.

15. Upon information and belief, plaintiff was assaulted by the police while in the precinct holding cell; transported to a local hospital for treatment for the injuries that he sustained; discharged after conclusion of treatment; and, then transported back to the precinct for fingerprinting and photographing.

16. Upon information and belief, plaintiff was then transported to Queens Central Booking; then to Queens Criminal Court where he was arraigned on September 5, 2022; entered a plea of not guilty; bail was set in the amount of \$50000 cash or \$25000 bond; and, ordered by the court to return to court on September 9, 2022 for further proceedings.

17. Upon information and belief, plaintiff was unable to make bail and was transported to a New York City Department of Corrections [NYCDC] jail.

18. Upon information and belief, on September 9, 2022, plaintiff was transported from the NYCDC jail to the Courthouse and released from custody at the Courthouse at approximately 6:00 PM pursuant to CPL §180.80 because no indictment was handed up, and, ordered by the court to return to court on October 25, 2022 for further proceedings, having been **incarcerated as a result of this arrest for approximately six (6) days.**

19. Upon information and belief, on October 25, 2022 his case was adjourned to December 9, 2022, and again adjourned to February 15, 2023.

20. Upon information and belief, on February 15, 2023, not having any evidence that plaintiff committed any of the crimes charged, the District Attorney moved to dismiss and seal the case and the motion was granted by the Court.

21. Upon information and belief, as a result of the false arrest, illegal imprisonment, detention and search, the plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

22. That by reason of the foregoing, plaintiff has suffered damages in an amount to be determined upon the trial of this action.

23. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

24. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "12" through "23" with the same force and effect as if more fully and at length set forth herein.

25. Upon information and belief, that at the time the prosecution was initiated by the District Attorney of Queens County, the District Attorney did not have probable cause to believe that the plaintiff was guilty of the above-named crimes and that in initiating the prosecution, the District Attorney

acted maliciously. That the police and the prosecutor knew or should have known at the moment of the plaintiff's arrest that there was no evidence that the plaintiff ever committed the aforementioned crimes on the date, time, and location in question; and, that the prosecution was brought in reckless disregard of the rights of the accused plaintiff without any reasonable grounds for belief that the plaintiff was guilty.

26. Upon information and belief, the accusatory instrument sworn to by New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, was false in that the plaintiff never committed the aforementioned crimes on the date, time, and location in question.

27. Upon information and belief, nevertheless, the District Attorney continued to prosecute the case until February 15, 2023, on which date, the District Attorney moved to dismiss and seal the case and the motion was granted by the Court.

28. Upon information and belief, as a result of the malicious prosecution, false arrest, illegal imprisonment, detention and search, the plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

29. That by reason of the foregoing, plaintiff has suffered damages in an amount to be determined upon the trial

of this action.

30. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AND BATTERY

31. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "12" through "23," and, "25" through "30" with the same force and effect as if more fully and at length set forth herein.

32. Upon information and belief, New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer DAVID BLACK, Tax Registration #:955757 and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, without just cause or provocation and with great force and violence, seized, assaulted and laid hold of the plaintiff while plaintiff in custody inside the precinct holding cell.

33. Upon information and belief, New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer DAVID BLACK, Tax Registration #:955757 and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, acting as agents and on behalf of the defendant CITY and within the scope of their employment, intentionally, willfully and maliciously assaulted and battered plaintiff in that they had the real or

apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact in the plaintiff, and, in a hostile and/or offensive manner touched, grabbed and/or struck the plaintiff, without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery in and about plaintiff's wrists, body and limbs.

34. Upon information and belief, that as a result of the intentional assault and battery committed by the defendant, its' agents, servants and employees, acting within the scope of their authority, and without probable and reasonable cause, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

35. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

36. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CARELESSLY AND
RECKLESSLY FAILING TO PROPERLY TRAIN AND SUPERVISE ITS'
EMPLOYEES**

37. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "12" through "23,"

"25" through "30," and, "32" through "36," with the same force and effect as if more fully and at length set forth herein.

38. Upon information and belief, the defendant CITY negligently, carelessly and recklessly failed to properly train and supervise its' employees, in particular, New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, who conducted the investigation leading up to the plaintiff's arrest; and directed and/or authorized New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, to arrest the plaintiff; and New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, who arrested the Plaintiff; in that Defendant CITY failed to train its' employee(s) in the proper manner in which to stop, search

and arrest persons in general and the plaintiff in particular; and to otherwise act as reasonably, prudent police officers; failing to give the proper instruction to Defendant's employee(s) as to their deportment, behavior and conduct as representatives of their employers; and, in that the Defendant CITY's agents, servants and employees were otherwise reckless, careless and negligent.

39. Upon information and belief, that as a result of the defendant CITY's negligent, careless and reckless training and supervising of its' employees which culminated in causing plaintiff's arrest and prosecution, Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

40. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

41. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR RECKLESS HIRING AND/OR
RETENTION OF DEFENDANTS' EMPLOYEES**

42. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "12" through "23," "25" through "30," "32" through "36," and, "38" through "41" with the same force and effect as if more fully and at length

set forth herein.

43. Upon information and belief, the reckless hiring and/or retention of defendant CITY's employees consisted of carelessly and recklessly hiring and retaining as and for its employee(s), New York Police Department detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, who conducted the investigation leading up to the plaintiff's arrest in that the said Defendant employee(s) lacked the experience, deportment and ability to be employed by Defendant CITY; in that Defendant CITY failed to exercise due care and caution in its hiring practices, and in particular, in hiring its' employee(s) who lacked the mental capacity and the ability to function as an employee(s) of the Defendant CITY ; in that the Defendant, THE CITY OF NEW YORK, failed to investigate the above named employee(s) back ground; in that the employee(s) lacked the maturity, sensibility and intelligence to be employed by the Defendant CITY; in that the Defendant CITY knew of the lack of ability, experience, deportment and maturity of said employee(s) when Defendant CITY hired him/them to be an employee(s); and, in that the Defendant CITY, its' agents, servants and employees were otherwise careless, negligent and reckless.

44. Upon information and belief, that as a result of the

reckless hiring and/or retention of defendant CITY's employees which culminated in causing plaintiff's arrest, the Plaintiff sustained serious personal injuries, was rendered sick, sore, lame and disabled; suffered a severe shock to his/her nervous system and sustained severe physical pain and mental anguish. Upon information and belief, some of said injuries will be permanent.

45. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

46. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR SIXTH CAUSE OF ACTION FOR DEPRIVATION OF FEDERALLY SECURED RIGHTS UNDER FEDERAL CIVIL RIGHTS LAW 42 USC §1983

47. Plaintiff repeats, reiterates and realleges each and every paragraph of the Complaint designated "12" through "23," "25" through "30," "32" through "36," "38" through "41," and, "43" through "46" with the same force and effect as if more fully and at length set forth herein.

48. Upon information and belief, on or about **Saturday, September 3, 2022 at approximately 5:55 PM at or near Beach 84 Street and Rockaway Beach Boulevard, Far Rockaway, NY 11693,** plaintiff was arrested without probable cause by New York Police Department [NYPD] police officer Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police

Officer DAVID BLACK, Tax Registration #:955757 and/or by other New York Police Department Officers whose names, shield numbers, and tax registration numbers are not known to plaintiff, for allegedly committing the following offense(s) on July 29, 2022 in front of 260 Beach 81 Street, Queens, NY at approximately 4:30PM to 4:35 PM with respect to JHONNY PEREZ and JOSHUA PAGAN:

Penal Law §160.15(4), Robbery in the First Degree, a class B felony [2 counts];

Penal Law §160.10(1), Robbery in the Second Degree, a class C felony [2 counts];

Penal Law §160.10(2)(b), Robbery in the Second Degree, a class C felony [2 counts];

Penal Law §160.05, Robbery in the Third Degree, a class D felony [2 counts];

Penal Law §155.35(1), Grand Larceny in the Third Degree, a class D felony;

Penal Law §155.30(8), Grand Larceny in the Fourth Degree, a class E felony;

Penal Law §120.05(3), Assault in the Second Degree, a class D felony;

Penal Law §120.14(1), Menacing in the Second Degree, a class A misdemeanor [2 counts];

Penal Law §205.30, Resisting Arrest, a class A misdemeanor.

49. Upon information and belief, plaintiff was lawfully at a NYC playground, at which time and place defendant's employee(s), New York Police Department [NYPD] Detective

NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 and/or by other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, having the real and apparent ability to cause imminent harmful and offensive bodily contact and the power and authority to arrest and imprison the plaintiff did so threaten these acts upon the plaintiff, who, after continuing his/her lawful activity, was handcuffed by the defendant's employee(s), [NYPD] police officer Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757 and/or by other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff.

50. Upon information and belief, immediately thereafter, aforementioned defendant CITY's agents, servants and employees falsely arrested and imprisoned the plaintiff, severely assaulted and battered the plaintiff while plaintiff was in custody and inside a NYPD precinct holding cell and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, handcuffed him and threatened plaintiff with the possible use of further physical force; in that they continued to assault and batter the plaintiff and to imprison him without any conduct on the part of the plaintiff to so warrant, to wit:

a) in that all of the actions of the defendant CITY's, agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, to arrest, restrain and imprison the plaintiff without his consent, the plaintiff was at all times conscious of his arrest, did not consent to the false arrest and the imprisonment were not otherwise privileged; and,

b) the arrest and imprisonment were not justified by probable cause or other legal privilege; defendant CITY's agents, servants and employees, acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of Queens, and under the authority of their office as police officers for said City, falsely charged the plaintiff with allegedly violating the aforementioned sections of the NYS Penal Law, although the defendant CITY's police officer(s), acting in such capacity, knew that such charge(s) were false; and,

c) in that the defendant CITY's agents, servants and employees caused an assault and battery when they in a hostile and/or offensive manner threatened, touched, grabbed and/or struck the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatever; and,

d) that the defendant CITY's agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants' agents, servants and employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including plaintiff; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendant CITY; and,

e) the failure of the defendant CITY's agents, servants and employees to hire, train, supervise, discipline or in any other way control the police officers, in the exercise of their functions; in that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including plaintiff; and,

f) due to the acts of the defendant CITY's agents, servants and employees herein, the failure of the City of New York to discipline and properly hire the

police officers and the continued employment of the police officers presents a clear and present danger to the citizens of the City and State of New York; and,

g) that the said prosecution and criminal charges and hearings were instituted and procured by the defendant CITY's agents, servants and employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefor.

That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause; and,

h) that the defendant CITY's agents, servants and employees permitted the use of policy and/or drafted policy that was violative of the constitutional rights of the above named plaintiff; and, in that each and all of the acts of the defendant CITY's agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Queens, and under the authority of their office as police officers for said city and county.

51. Upon information and belief, plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, and deprived

of his constitutional rights as set forth in the Constitution of the United States, 42 U.S.C. §1983, and, the Constitution of the State of New York.

52. Upon information and belief, as a direct result of the illegal actions and conduct on the part of the defendant, CITY's agents, servants and employees, plaintiff was falsely arrested and imprisoned, assaulted and battered, and compelled to be arraigned and appear in Criminal Court of the City of New York, County of Queens, and/or in Supreme Court of the State of New York, County of Queens and to undergo a criminal proceeding until February 15, 2023, on which date, upon information and belief, all charges relating to this arrest and prosecution were dismissed and sealed.

53. Upon information and belief, that at all times hereinafter mentioned, New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, was/were employed in their respective capacities by the defendant THE CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

54. Upon information and belief, that at all times

hereinafter mentioned, defendant CITY's employees, New York Police Department [NYPD] Detective NICHOLAS DORAN, Tax Registration #:956609, of the Queens Robbery Squad, Police Officer MICHAEL KRANZ, Tax Registration #:963101, Police Officer DAVID BLACK, Tax Registration #:955757, and/or other police officers of the New York City Police Department, whose name(s) and shield number(s) are unknown to the plaintiff, was/were acting pursuant to orders and directives from the defendant THE CITY OF NEW YORK.

55. Upon information and belief, that during all times hereinafter mentioned, the defendant CITY's police officers and each of them, separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and the police officers here, separately and in concert, engaged in the illegal conduct here mentioned to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities secured to plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States.

56. Upon information and belief, the Police Officers of the defendant THE CITY OF NEW YORK and its individual members who are agents, servants and employees of defendant CITY, together with persons unknown to plaintiff, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of illegal harassment, assault and battery, false imprisonments and arrests at the time said

plaintiff was lawfully at his residence in the County of Queens, City and State of New York, in denial of rights, privileges and immunities guaranteed plaintiff and other citizens by the Constitution of the United States.

57. Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of violence, intimidation, false arrest and false imprisonment visited on plaintiff and other citizens by members of the police department of defendant THE CITY OF NEW YORK, acting in concert with persons unknown to plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

58. Upon information and belief, although defendant CITY knew or should have known of the fact that this pattern of conduct was carried out by its' agents, servants and employees, the defendant THE CITY OF NEW YORK, has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

59. Upon information and belief, the unlawful and illegal conduct of the defendant CITY's agents, servants and employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of

the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and,
- c) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

60. Upon information and belief, that by reason of the aforesaid violations, false arrest and false imprisonment, assault and battery caused by the defendant CITY's agents, servants and employees who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendant, their agents, servants and employees violated 42 U.S.C. §1983 in that the defendant CITY's agents, servants and employees acted as persons who under color of any statute, ordinance, regulation, custom or usage of the City of

New York, subjected or caused to be subjected, a citizen of the United States or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

61. Upon information and belief, that by reason of the aforesaid intentional assault and battery, the false arrest and false imprisonment, and deprivation of his rights and liberties as guaranteed by the aforementioned constitutions, by the defendant CITY's agents, servants and employees, acting within the scope of their authority, and without any probable or reasonable cause, the plaintiff suffered great bodily injury in and about the wrists, [if applicable: and head, neck, back, body and limbs] and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

62. That by reason of the foregoing, Plaintiff has suffered damages in an amount to be determined upon the trial of this action.

63. The amount of damages sought in this action exceeds

the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff **ANDREW SMALLS** demands Judgment against the Defendant in the first cause of action in an amount to be determined upon the trial of this action; and Plaintiff **ANDREW SMALLS** demands Judgment against the Defendant in the second cause of action in an amount to be determined upon the trial of this action; and Plaintiff **ANDREW SMALLS** demands Judgment against the Defendant in the third cause of action in an amount to be determined upon the trial of this action; and Plaintiff **ANDREW SMALLS** demands Judgment against the Defendant in the fourth cause of action in an amount to be determined upon the trial of this action; and Plaintiff **ANDREW SMALLS** demands Judgment against the Defendant in the fifth cause of action in an amount to be determined upon the trial of this action; and Plaintiff **ANDREW SMALLS** demands Judgment against the Defendant in the sixth cause of action in an amount to be determined upon the trial of this action; together with the costs and disbursements and counsel fees of this action.

Dated: Great Neck, New York
October 8, 2023

Yours, etc.,


Michael L. Cserhalmi
MICHAEL L. CSERHALMI, P.C.
Attorneys for Plaintiff(s)
38 Maple Drive
Great Neck, NY 11021
(516) 482-6633 [OFFICE]
(516) 610-6633 [CELL]
MLC6633@VERIZON.NET

ATTORNEY VERIFICATION

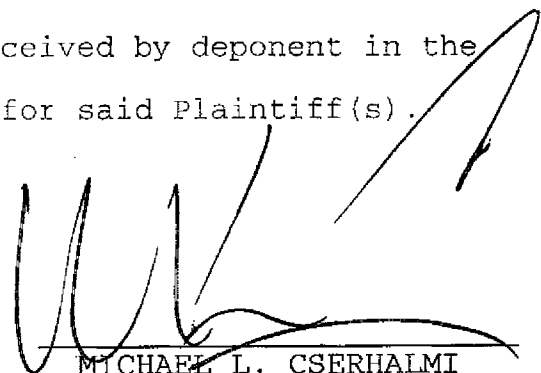
STATE OF NEW YORK)
 : SS.:
COUNTY OF NASSAU)

MICHAEL L. CSERHALMI, ESQ., a member of the firm of MICHAEL L. CSERHALMI, P.C., duly admitted to practice in the Courts of the State of New York, does hereby affirm under penalty of perjury:

I am the attorney for the Plaintiff(s) in the within entitled action and have read the foregoing pleading and know the contents thereof and the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief and as to those matters, I believe them to be true.

Deponent further states that the reason why this verification is not made by the Plaintiff(s) is that said Plaintiff(s), upon information and belief, does/do not reside within the County wherein deponent has his office. That the grounds of deponent's belief as to all matters not therein stated to be alleged upon his own knowledge are investigations and information received by deponent in the course of his duties as attorney for said Plaintiff(s).

Dated: Great Neck, New York
 October 8, 2023



MICHAEL L. CSERHALMI

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANDREW SMALLS,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, New York Police
Department Detective NICHOLAS DORAN,
Tax Registration #:956609, of the
Queens Robbery Squad, Police Officer
MICHAEL KRANZ, Tax Registration #:963101,
Police Officer DAVID BLACK, Tax
Registration #:955757 and JOHN DOES -
Police Officers as yet unidentified,

Index No:

Defendant(s).

SUMMONS AND COMPLAINT

MICHAEL L. CSERHALMI, P.C.
Attorneys for Plaintiff(s)Office and Post Office Address
38 Maple Drive
Great Neck, NY 11021
(516) 482-6633
FAX: (516) 482-8406Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted
to practice in the courts of New York State, certifies that, upon
information and belief and reasonable inquiry, the contentions
contained in the annexed document are not frivolous.

DATED: October 8, 2023

MICHAEL L. CSERHALMI, Esq.

Service of a copy of the within
admitted.

is hereby

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE:

___ Notice of Entry

That the within is a () true copy of an
entered in the office of the Clerk of the within named Court
on , 2023.

___ Notice of Settlement

That a of which the within is a true
copy will be presented for settlement to the Hon.
, one of the judges of the within named Court,
, NY, on , 2016, at 9:30 A.M.